

**BOARD OF ADA COUNTY COMMISSIONERS
MINUTES OF THE PUBLIC HEARING
WEDNESDAY, NOVEMBER 12, 2025
6:00 P.M.**

The Board of Ada County Commissioners met this date in the Ada County Public Hearing Room of the Ada County Courthouse Complex. Staff members present: Richard Beck, Brent Danielson, Amelia Haynes, Doug Holtom, Michaela Owens and Elias Sandoval-Clarimon, Development Services; and Meg Waddel, Prosecuting Attorney's Office. Minutes Recorder: Matt Reed.

I. IN THE MATTER OF CALL TO ORDER:

Commissioner Rod Beck called the meeting to order at 6:03 p.m.

II. IN THE MATTER OF ROLL CALL:

Commissioners Rod Beck and Ryan Davidson were present. Commissioner Tom Dayley joined the meeting at 6:08 p.m.

III. IN THE MATTER OF CHANGES TO THE AGENDA:

There were no changes to the agenda.

IV. IN THE MATTER OF NEW BUSINESS:

1. **202501115-S-PR, ACKERMAN-ESTVOLD:** Preliminary Plat and Private Road for the Floyd Subdivision, a three (3) lot subdivision. The property is located at 3920 E Columbia Rd and contains 18.80 acres in the Rural-Urban Transition (RUT) District; Section 4, T.2N, R.1E. Amelia Haynes, Associate Planner, at either (208) 287-5715 or ahaynes@adacounty.id.gov.

R. Beck opened the public hearing.

A. Haynes presented the Staff report.

Applicant testified in support of the application.

R. Beck closed the public hearing.

ACTION: R. DAVIDSON MOVED TO APPROVE APPLICATION NO. 202501115-S-PR, ACKERMAN-ESTVOLD, BASED ON THE FINDINGS OF FACT AND CONCLUSIONS OF LAW CONTAINED IN THE STAFF REPORT AND THE TESTIMONY PRESENTED. T. DAYLEY SECONDED. R. DAVIDSON, AYE, T. DAYLEY, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

2. **202501074-S-PR, ACKERMAN-ESTVOLD:** Preliminary Plat and Private Road for Waterhole Subdivision No. 1, which consists of two (2) buildable lots. The property is located at 5535 W Victory Rd and contains 10.0 acres in the Rural-Urban Transition (RUT) District; Section 28, T.3N, R.1W. Brent Danielson, Senior Planner, at either (208) 287-7913 or bdanielson@adacounty.id.gov.

R. Beck opened the public hearing.

B. Danielson presented the Staff report.

Applicant gave testimony supporting the application.

R. Beck closed the public hearing.

ACTION: T. DAYLEY MOVED TO APPROVE APPLICATION NO. 202501074-S-PR, ACKERMAN-ESTVOLD, BASED ON THE FINDINGS OF FACT AND CONCLUSIONS OF LAW CONTAINED IN THE STAFF REPORT AND THE TESTIMONY PRESENTED. R. DAVIDSON SECONDED. T. DAYLEY, AYE, R. DAVIDSON, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

3. **202501528-S & 202300319-DA-DM, HAWKINS COMPANIES COMMERCIAL DEVELOPERS:** Application for approval of a Preliminary Plat for 3 commercial lots in the Community Commercial (C2) District. The property is located at 6080 S Five Mile Rd and contains 2.5 acres; Section 35, T.3N, R.1E. RUGER'S LANDING SUB - Associated with DA Mod-202300319 - DA-DM-C. Brent Danielson, Senior Planner, at either (208) 287-7913 or bdanielson@adacounty.id.gov.

R. Beck opened the public hearing.

B. Danielson presented the Staff report.

Applicant presented a PowerPoint explaining the application.

The parties discussed mitigating noise and light.

R. Beck closed the public hearing.

ACTION: R. DAVIDSON MOVED TO APPROVE APPLICATION NOS. 202501528-S AND 202300319-DA-DM, HAWKINS COMPANIES COMMERCIAL DEVELOPERS, BASED ON THE FINDINGS OF FACT AND CONCLUSIONS OF LAW CONTAINED IN THE STAFF REPORT AND THE TESTIMONY PRESENTED. T. DAYLEY SECONDED. R. DAVIDSON, AYE, T. DAYLEY, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

4. **202501820-V, DAN SESSIONS:** Variance for property setback requirements to construct a carport. The property is located at 10786 W Onondaga Dr. and contains 0.5 acres in the Low Density Residential (R2) District; Section 27, 3N, 1E. Michaela Owens, Associate Planner, at either (208) 287-7924 or mowens@adacounty.id.gov.

R. Beck opened the public hearing.

M. Owens presented the Staff report.

Applicant testified in support of the application.

The parties discussed property dimensions, structure location and vehicle parking.

R. Beck closed the public hearing.

ACTION: T. DAYLEY MOVED TO APPROVE APPLICATION NO. 202501820-V, DAN SESSIONS, BASED ON THE FINDINGS OF FACT AND CONCLUSIONS OF LAW CONTAINED IN THE STAFF REPORT AND THE TESTIMONY PRESENTED; AND TABLE IT TO THE NOVEMBER 25, 2025, OPEN BUSINESS MEETING FOR REVISED FINDINGS OF FACT AND CONCLUSIONS OF LAW. R. DAVIDSON SECONDED. T. DAYLEY, AYE, R. DAVIDSON, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

5. **202501356-ZC-DA-PBA, BRANDON BREAU:** Zone Change from the Rural Preservation (RP) District to the Rural Residential (RR) District (Ordinance No. 1004), a Development Agreement (Agreement No. 31166), and Property Boundary Adjustment to create three parcels more than 10.0 acres in size. The properties are located at 5707, 5735, and 6021 N Willow Creek Rd and contain 41.45 acres; Section 29, T.5N, R.1E. Michaela Owens, Associate Planner, at either (208) 287-7924 or mowens@adacounty.id.gov.

R. Beck opened the public hearing.

M. Owens presented the Staff report.

Applicant was present for questions but did not testify.

R. Beck closed the public hearing.

ACTION: T. DAYLEY MOVED TO APPROVE APPLICATION NO. 202501356-ZC-DA-PBA, BRANDON BREAUX, BASED ON THE FINDINGS OF FACT AND CONCLUSIONS OF LAW CONTAINED IN THE STAFF REPORT AND THE TESTIMONY PRESENTED. R. DAVIDSON SECONDED. T. DAYLEY, AYE, R. DAVIDSON, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

6. **202500469-ZC-DA-S, MICHAEL NUXOLL:** Zone Change of a 2.65 acre portion of the property from the Southwest Community Residential (RSW) District to the Airport Industrial (M3) District (Ordinance No. 1005), a Development Agreement (Agreement No. 31218), and Preliminary Plat for Working Class Acres Subdivision, a twenty-four (24) lot industrial subdivision. The property is generally located between S Cole Rd and S Banner St (Parcel No. S1030315135) and contains a total of 29.89 acres in the Southwest Community Residential (RSW) District and the Airport Industrial (M3) District; Section 30, T.3N, R.2E. Michaela Owens, Associate Planner, at either (208) 287-7924 or mowens@adacounty.id.gov.

R. Beck opened the public hearing.

M. Owens presented the Staff report.

Applicant was present for questions but did not testify.

The parties discussed plans for future construction.

R. Beck closed the public hearing.

ACTION: R. DAVIDSON MOVED TO APPROVE APPLICATION NO. 202500469-ZC-DA-S, MICHAEL NUXOLL, BASED ON THE FINDINGS OF FACT AND CONCLUSIONS OF LAW CONTAINED IN THE STAFF REPORT. T. DAYLEY SECONDED. R. DAVIDSON, AYE, T. DAYLEY, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

7. **202501621-V, LAYNE LEWIS:** Variance to encroach into the side setback for an existing accessory structure. The property is located at 9148 N Willowview Ln and contains 80 acres in the Rural Preservation (RP) District; Section 15, T.5N, R.2E. Doug Holtom, Associate Planner, at either (208) 287-7905 or dholtom@adacounty.id.gov.

R. Beck opened the public hearing.

D. Holtom presented the Staff report.

Applicant testified in support of the application.

R. Beck closed the public hearing.

ACTION: T. DAYLEY MOVED TO APPROVE APPLICATION NO. 202501621-V, LAYNE LEWIS, BASED ON THE FINDINGS OF FACT AND CONCLUSIONS OF LAW CONTAINED IN THE STAFF REPORT AND THE TESTIMONY PRESENTED. R. DAVIDSON SECONDED. T. DAYLEY, AYE, R. DAVIDSON, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

8. **202501671-VAC, ROB NYHOF DESIGN:** Application a vacation of an easement on a plat to allow for construction of a new single family dwelling in a new location within Lot 4 Block 1 of Eagle North Estates, a 5.02 acre lot in an RUT zone. Sec 32 Township 5N Range 1E. Doug Holtom, Associate Planner, at either (208) 287-7905 or dholtom@adacounty.id.gov.

R. Beck opened the public hearing.

D. Holtom presented the Staff report.

Applicant was present for questions but did not testify.

R. Beck closed the public hearing.

ACTION: R. DAVIDSON MOVED TO APPROVE APPLICATION NO. 202501671-VAC, ROB NYHOF DESIGN, BASED ON THE FINDINGS OF FACT AND CONCLUSIONS OF LAW CONTAINED IN THE STAFF REPORT. T. DAYLEY SECONDED. R. DAVIDSON, AYE, T. DAYLEY, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

9. **202402701-CPA-PC, SVP LLC:** A Planned Community Comprehensive Plan Map and Text Amendment for the Shadow Valley Planned Community, which will consist of approximately 395 homes on 560 acres. The subject property is generally located east of Highway 55 between Spring Creek Way and Brookside Lane, and west of Highway 55 north of High Valley Way within the Rural Residential (RR) and Rural Preservation (RP) Districts; Sections 13, 24, 25, 26, T.5N, R.1E. Brent Danielson, Senior Planner, at either (208) 287-7913 or bdanielson@adacounty.id.gov.

R. Beck opened the public hearing.

B. Danielson presented the Staff report.

The Board and Staff discussed concerns raised in agency and public comments and at the Planning and Zoning Commission public hearing.

Applicant presented testimony supporting the application and addressing concerns.

The parties discussed water usage and resources, sewage treatment, school bus parking, public service standard waivers, commercial properties, residential density, the golf course, highway access and traffic.

Randy Hurst testified in opposition to the application stating water and traffic concerns.

B. Danielson explained the planned community application process.

Attorney Josh Leonard, Clark Wardle LLP, gave opposing testimony and presented a PowerPoint.

J. Leonard and the Board discussed Boise Hunter Homes requesting reimbursement from Applicant for improvements made to Highway 55, and water resources.

Saxon Poppell gave testimony opposing the application regarding density and traffic.

Derek Poppell reiterated prior testimony in opposition to the application.

Jerry Troy gave testimony in opposition to the application regarding water and density.

Karen Brodesser echoed previous opposing testimony.

Ben Schultz gave opposing testimony reiterating concerns raised.

Callie Kelley testified in opposition to the application voicing similar concerns.

Matt Lorenz gave testimony in opposition regarding impact of wildfires, fire safety issues and lack of egress.

Roxanne Licht reiterated previous testimony in opposition to the application.

Rachel Artner testified in opposition repeating previous concerns.

Natasha German echoed previous testimony in opposition.

Ryan Stadler gave testimony in opposition reiterating concerns.

Celeste Haase echoed previous opposing testimony.

Applicant gave rebuttal testimony.

The parties discussed the concerns raised.

R. Beck closed the public hearing.

ACTION: T. DAYLEY MOVED TO TABLE APPLICATION NO. 202402701-CPA-PC, SVP LLC, TO THE DECEMBER 16, 2025, OPEN BUSINESS MEETING. R. DAVIDSON SECONDED. T. DAYLEY, AYE, R. DAVIDSON, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

V. IN THE MATTER OF ADJOURNMENT:

There being no further business to come before the Board on this date, the meeting was adjourned at 9:56 p.m.



Rod Beck, Chair

ATTEST:



Trent Tripple, Ada County Clerk